

File No.: EXP202317613

RESOLUTION OF RIGHTS PROCEDURE

Having reviewed the complaint registered on October 26, 2023, with this Agency and having carried out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: On October 26, 2023, a complaint was received by this Agency filed by Ms. A.A.A. (hereinafter, the complainant) against AD735 DATA MEDIA ADVERTISING, S.L. (hereinafter, the respondent) for not having duly addressed her right to erasure.

The complainant states that she requested erasure on September 11, 2023, from the respondent without receiving a response.

SECOND: In accordance with Article 65.4 of the LOPDGDD, the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations, noting that no response had been submitted.

THIRD: The outcome of the transfer procedure indicated in the previous Fact did not allow for the understanding that the complainant's claims had been satisfied. Consequently, on January 26, 2024, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for the Protection of Data agreed to admit the complaint for processing.

The aforementioned agreement granted the respondent a hearing, to present any arguments deemed appropriate within ten working days.

The respondent indicated that on August 28, 2023, September 6, 2023, September 11, 2023, and September 15, 2023, the complainant contacted the entity requesting the cessation of commercial communications at the email address bajas@ad735.es.

"AD735 DATA MEDIA ADVERTISING processed the complainant's request on August 28, 2023, without any delay. As a result of the complainant's request, in accordance with Article 32 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, the LOPDGDD), the personal data of Ms. A.A.A. was blocked.

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The blocking of the complainant's data was carried out in accordance with the provisions of the LOPDGDD and consisted of the identification and reservation of the same, adopting technical and organizational measures to prevent their processing, including their visualization, except for the provision of data to judges and courts, the Public Prosecutor's Office, or the competent Public Administrations, particularly data protection authorities, for the enforcement of possible liabilities arising from processing and only for the statute of limitations period thereof.

Since the date on which the complainant's personal data was erased, these have not been processed by AD735 DATA MEDIA ADVERTISING for any purpose other than those indicated, particularly for sending commercial communications.

The receipt of Ms. A.A.A.'s request at the email address bajas@ad735.es automatically generated the inclusion of her email address in the respondent's advertising exclusion list, and therefore, the deletion of her personal data from the database intended for sending commercial communications by the respondent."

The respondent states that, along with the inclusion of the complainant's personal data in the advertising exclusion list, a response was sent to the complainant via email informing her that "(...) If you have requested the erasure of your personal data, we inform you that we are processing your request, which will be effective within approximately 7 days, and always within the limits set by current

data protection regulations.”

The respondent adds in its written arguments that “(...) on August 28, 2023, August 30, 2023, September 4, 2023, September 11, 2023, September 12, 2023, September 18, 2023, and September 25, 2023, the Cessation Department of the respondent communicated to all data processors designated by AD735 DATA MEDIA ADVERTISING the complainant's opposition to receiving commercial communications. Therefore, any subsequent commercial communication sent to the complainant by a data processor designated by the respondent was made without the knowledge or commission of AD735 DATA MEDIA ADVERTISING. Among the entities designated as data processors by AD735 DATA MEDIA ADVERTISING is the Portuguese company SELECTIVE TURTLE, Lda., with VAT number PT 514733136, located at Rua Rui Gameiro 100, 4000 - Porto (Portugal), and email “geral@up2digital.com,” an entity responsible for sending the commercial communications that Ms. A.A.A. mentions in her complaint, through the domain news.esparati.es. “(...) On March 13, 2024, a response was provided to the complainant regarding the transfer of her complaint by this Agency, informing her of the erasure of her personal data and facilitating her right of access to the same.”

FOURTH: Having examined the document submitted by the respondent, it is forwarded to the complainant, so that, within ten working days, she may formulate any arguments she deems appropriate.

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The claiming party states, in summary, that they have continued to receive commercial communications until January 29, 2024.

“Attached is a list of the emails received from the address news.esparati.es, emails in which the company AD735 DATA MEDIA ADVERTISING S.L. appears as responsible for my personal data at the footer (...)”

FIFTH: After granting a hearing to the responding party, they reiterate their previous allegations and add that

“(...) The data processors were informed on several occasions (on the days 28/08/23, 30/08/23, 04/09/23, 11/09/23, 12/09/23, 18/09/23, and 25/09/23) of the claimant's opposition to receiving commercial communications, in order not to send further commercial communications thereafter. Since the communications from the claimant coincided with the timeframe for addressing the rights recognized by the GDPR, and due to the fact that sometimes the effective cessation of sending commercial communications may be delayed by a few days due to system configurations, the responding party understood that the cancellation was being processed by the entity responsible for data processing, as it was in their own files. Previously, no incidents like that of Ms. A.A.A. had been detected.

Thus, any subsequent commercial communication sent to the claimant by a data processor designated by the responding party was done without the knowledge or mandate of AD735 DATA MEDIA ADVERTISING.

THIRD.- AD735 DATA MEDIA ADVERTISING has adopted all necessary measures to effectively address the claimant's request, as is their custom and which has proven effective. However, considering that the incident detected and claimed by Ms. A.A.A. was not desired by her, and that it was neither desired nor is it by AD735 DATA MEDIA ADVERTISING, the commercial relationship with the entity responsible for data processing that sent the commercial communications to Ms. A.A.A. has been resolved.”

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of the LOPDGDD, the Director of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: “The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures.”

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Data Protection Agency is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors about their obligations, as well as addressing complaints submitted by a data subject and investigating, as appropriate, the reasons for them.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In the case that they have designated a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with said authority.

In accordance with this regulation, following the procedure established in Article 65.4 of the LOPDGDD, prior to the admission of the complaint regarding the exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to this procedure, the complaint was forwarded to the responding party for analysis, to respond to this Agency within one month, and to demonstrate that they had provided the claimant with the appropriate response.

The result of this transfer did not allow for the understanding that the claims of the claiming party were satisfied. Consequently, on January 26, 2024, for the purposes provided in Articles 64.1 and 65 of the LOPDGDD, the complaint submitted was admitted for processing. This admission for processing determines the opening of the present procedure for the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

“When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure shall be six months from the date on which the claimant was notified of the admission agreement. After this period, the interested party may consider their complaint accepted.”

Article 58.2 of the GDPR grants the Spanish Data Protection Agency a series of corrective powers to correct any infringement of the GDPR, including “ordering the controller or processor to address the requests for the exercise of the rights of the data subject under this Regulation.”

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III

Rights of Individuals Regarding Personal Data Protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights include access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability.

The formal aspects related to the exercise of these rights are established in Article 12 of the GDPR and Article 12 of the LOPDGDD.

Additionally, consideration is given to the provisions expressed in Recitals 59 and following of the GDPR.

In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which will be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and must express its reasons if it does not intend to comply with such request. The burden of proof for compliance with the obligation to respond to the request for the exercise of rights made by the affected individual lies with the data controller.

The communication addressed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

Right to Erasure

Article 17 of the GDPR, which regulates the right to erasure of personal data, establishes the following:

"1. The data subject shall have the right to obtain from the data controller the erasure of personal data concerning them without undue delay, and the data controller shall be obliged to erase personal data without undue delay when one of the following circumstances applies:

- a) the personal data are no longer necessary in relation to the purposes for which they were collected or otherwise processed;
- b) the data subject withdraws consent on which the processing is based in accordance with Article 6(1)(a) or Article 9(2)(a), and where there is no other legal ground for the processing;
- c) the data subject objects to the processing pursuant to Article 21(1), and there are no overriding legitimate grounds for the processing, or the data subject objects to the processing pursuant to Article 21(2);
- d) the personal data have been unlawfully processed;
- e) the personal data must be erased for compliance with a legal obligation in Union or Member State law to which the data controller is subject;
- f) the personal data have been collected in relation to the offer of information society services referred to in Article 8(1).

2. When the data controller has made the personal data public and is obliged, under paragraph 1, to erase such data, the data controller, taking into account the available technology and the cost of implementation, shall take reasonable steps, including technical measures, to inform controllers that are processing the personal data of the data subject's request for erasure of any links to, or copies or replications of, those personal data.

3. Paragraphs 1 and 2 shall not apply to the extent that processing is necessary:

- a) for exercising the right of freedom of expression and information;
- b) for compliance with a legal obligation which requires processing by Union or Member State law to which the data controller is subject, or for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- c) for reasons of public interest in the area of public health in accordance with Article 9(2)(h) and (i), and paragraph 3;
- d) for archiving purposes in the public interest, scientific or historical research purposes or statistical purposes in accordance with Article 89(1), insofar as the right referred to in paragraph 1 is likely to render impossible or seriously impair the achievement of the objectives of that processing, or
- e) for the establishment, exercise or defense of legal claims."

V

Processor

Article 28 of the GDPR, Processor, provides that

"1. Where processing is to be carried out on behalf of a data controller, the controller shall choose only a processor providing sufficient guarantees to implement appropriate technical and organizational measures in such a manner that processing will meet the requirements of this Regulation and ensure the protection of the rights of the data subject.

2. The processor shall not engage another processor without prior specific or general written

authorization of the controller. In the latter case, the processor shall inform the controller of any intended changes concerning the addition or replacement of other processors, thereby giving the controller the opportunity to object to such changes.

3. Processing by the processor shall be governed by a contract or other legal act under Union or Member State law, which binds the processor to the controller and sets out the subject matter, duration, nature, and purpose of the processing, the type of personal data and categories of data subjects, and the obligations and rights of the controller. Such contract or legal act shall stipulate, in particular, that the processor:

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- a) shall process personal data only in accordance with documented instructions from the controller, including with respect to the transfers of personal data to a third country or an international organization, unless required to do so by Union law or the Member States' law applicable to the processor; in such a case, the processor shall inform the controller of that legal requirement prior to the processing, unless that law prohibits such information on important grounds of public interest;
- b) shall ensure that persons authorized to process personal data have committed themselves to confidentiality or are under an appropriate statutory obligation of confidentiality;
- c) shall take all necessary measures in accordance with Article 32;
- d) shall respect the conditions laid down in paragraphs 2 and 4 for engaging another processor;
- e) shall assist the controller, taking into account the nature of the processing, by means of appropriate technical and organizational measures, insofar as this is possible, so that the controller can comply with its obligation to respond to requests concerning the exercise of the rights of data subjects laid down in Chapter III;
- f) shall assist the controller in ensuring compliance with the obligations laid down in Articles 32 to 36, taking into account the nature of the processing and the information available to the processor;
- g) at the choice of the controller, shall delete or return all personal data once the provision of processing services has ended, and shall delete existing copies unless Union or Member State law requires the retention of personal data;
- h) shall make available to the controller all information necessary to demonstrate compliance with the obligations laid down in this Article, as well as to allow and contribute to audits, including inspections, conducted by the controller or another auditor authorized by the controller.

In relation to the provisions of point h) of the first paragraph, the processor shall immediately inform the controller if, in its opinion, an instruction infringes this Regulation or other Union or Member State data protection provisions.

4. (...)

10. Without prejudice to Articles 82, 83, and 84, if a processor infringes this Regulation by determining the purposes and means of processing, it shall be considered a controller in relation to that processing."

Article 29 of the same legal text, Processing under the authority of the controller or the processor, states that "

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"The data processor and any person acting under the authority of the data controller or the processor and having access to personal data may only process such data following the instructions of the controller, unless they are required to do so by Union law or the laws of the Member States."

VI

Conclusion

The rights procedure is initiated as a result of the failure to address any of the rights regulated in the data protection legislation. Therefore, in this case, only the facts related to the exercise of these rights will be analyzed and assessed, excluding the other issues raised by the parties.

In this case, and considering what is stated in the first paragraph of this Legal Basis, from the examination of the documentation provided by the parties, it has been established that the claimant exercised the right to erasure before the respondent. During the processing of this procedure, the respondent has stated that upon receiving the claimant's request, the automatic inclusion of their email address in the respondent's advertising exclusion list was generated, and that they sent an email indicating that they would process the request within approximately seven days.

Notwithstanding the above, the claimant has continued to receive commercial communications, to which the respondent has indicated that they communicated the claimant's opposition to receiving commercial communications to the processors on several occasions, in order to refrain from sending further commercial communications.

The respondent states that due to the fact that the effective cessation of sending commercial communications may be delayed by a few days due to system configurations, the respondent understood that the cancellation was being processed by the entity responsible for processing, as it was in their own files.

However, it has been noted that "(...) any subsequent commercial communication sent to the claimant by a processor designated by the respondent was done without the knowledge or instruction of AD735 DATA MEDIA ADVERTISING." and, therefore, "(...) has taken all necessary measures to effectively address the claimant's request, as is their custom, and which have proven effective. Nevertheless, considering that the incident detected and claimed by Ms. A.A.A. was not desired by her, and that it was neither desired by AD735 DATA MEDIA ADVERTISING, the commercial relationship with the entity responsible for processing that sent the commercial communications to Ms. A.A.A. has been resolved."

Upon examining the responses issued by the respondent, it should be noted that, while it is true that once the exercise of the right was received, the respondent states that they sent an email acknowledging receipt of said right and indicating that they would include the claimant in the list to not receive commercial communications, regarding the attention to said right, they only indicate that they will process the request, without any indication that said right has been duly addressed or denied with justification. Furthermore, no documentary evidence has been provided that allows for the consideration that such a response was sent to the claimant.

However, during the processing of this procedure, the respondent has sent an email to the claimant, a copy of which has been submitted to this Agency, in which they inform that the claimant's personal data was deleted from the entity's files on August 28, 2023, informing the designated processors of this circumstance so that they would cease sending commercial communications.

As a consequence of all the above, it is appropriate to uphold, for formal reasons, the complaint that led to this file, given that the right was effectively addressed, albeit late.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD for formal reasons, the complaint filed by Ms. A.A.A. against AD735 DATA MEDIA ADVERTISING, S.L. However, it is not appropriate to issue a new certification by the respondent, as the response was issued late, without requiring additional actions by the controller.

SECOND: TO NOTIFY this resolution to Ms. A.A.A. and to AD735 DATA MEDIA ADVERTISING, S.L. In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months

from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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